

26AVCV00426 26AVCV00426

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 26AVCV00426 Hearing Date: September 17, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

YOULANDER YVETTE PRESSEY,

Plaintiff,

v.

LA DARTS PROPERTIES, LLC; DARTS PROPERTIES INC.; SUNRISE LANCASTER APARTMENTS; and DOES 1 through 100, inclusive,

Defendants.

Case Number 26AVCV00426

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 17, 2026

Dept. A-14

Judge William H. Forman

I. Background

Plaintiff's counsel Mindy S. Bish of Bish Law, APC (together "Counsel") moves the Court to be relieved as counsel.

On March 24, 2026, Plaintiff Youlander Yvette Pressey ("Plaintiff") filed her form complaint against Defendants LA Darts Properties, LLC, Darts Properties Inc., and Sunrise Lancaster Apartments (collectively "Defendants"), asserting one cause of action for Premises Liability. Plaintiff alleges that she was residing in her apartment located at 1243 Meadow View Lane, Apartment 7, Lancaster, CA 93534, where she had experienced ongoing water leak and plumbing issues since 2022, when her ceiling caved in, causing Plaintiff to slip and fall on water debris, slammed her head, and sustained injuries.

On May 1, 2026, Defendants filed an answer.

On July 22, 2026, the Court held a CMC and referred the parties to mediation, to be completed by March 22, 2027.

On August 12, 2026, Counsel moved to be relieved as counsel of record for Plaintiff. No opposition has been filed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current." (Id at rule 3.1362(d).)

III. Discussion

Application – Counsel moves to be relieved as counsel for Plaintiff. Counsel has substantially complied with the statutory requirements of Rule 3.1362 and has filed an MC-051 that contains all required information, is directed to Plaintiff, and was served via standard mailing. Counsel has also provided an MC-052 form, declaring that Counsel has to the best of their ability represented Plaintiff, but that Plaintiff has been unresponsive and refused to answer Counsel's attempts at communication in a timely manner throughout the pendency of the action. Counsel also asserts this lack of communication hinders their ability to resolve the action, renders them unable to fulfill their duties as Plaintiff's counsel, and has resulted in a deterioration of the attorney-client relationship. The MC-052 form also provides that Counsel has been unable to confirm that Plaintiff's last known address or locate a more current address for Plaintiff after mailing the motion papers to Plaintiff's last known address with return receipt requested, calling Plaintiff's last known telephone number(s), and conducting a Skip Trace search. Finally, Counsel has provided an MC-053 Order form with all required information except for Plaintiff's last known telephone number, which has not been provided.

The Court finds minimal prejudice to Plaintiff in granting this motion. While the case has been referred for mediation, with an OSC re Completion of Mediation and Trial Setting Conference set for hearing on March 22, 2027, Plaintiff may choose to proceed in propria persona, and there is sufficient time for Plaintiff to retain counsel to represent her in these hearings and in mediation, if she so chooses. The Court also notes that Plaintiff's subsequent counsel, if she chooses to so retain, has the option of brief continuance of the OSC and/or TSC if retained without sufficient time to prepare or to otherwise engage in mediation efforts. However, the case is in its beginning stages, very little has transpired on the record, and at the time of hearing on this motion, over six months remain for the parties to attend and complete mediation.

Accordingly, Counsel's motion to be relieved is GRANTED. Counsel shall provide Plaintiff's contact information, if known, in accordance with the Court's final ruling within 48 hours of this Order.

IV. Conclusion

Plaintiff's counsel Mindy S. Bish of Bish Law, APC's Motion to Be Relieved as Counsel is GRANTED.

Mindy S. Bish and Bish Law, APC is to give notice to Plaintiff and all other parties. Mindy S. Bish and Bish Law, APC shall provide Plaintiff's last known telephone number(s), if any is known, to the Court and Defendants' counsel within 48 hours of this hearing to be included on the MC-053 Order. If no telephone number for Plaintiff is known, Bish shall provide Plaintiff's electronic mailing address to the same within 48 hours of this Order. Otherwise, Bish shall confirm with the Court and Defendants' counsel that no telephone number, electronic mailing address, or other method of contact for Plaintiff is known within 48 hours of this Order.